

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

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For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
8/8/2024 12:24 AM

Entry Number
8,213

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
211 Hope Street 391751, Mountain View, California 94041

Judge and conduct

Judge 1

Name of judge
Beth McGowen

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

08/07/2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Presiding Judge Beth McGowen on 08/07/2024 denied my notice of appeal of retaliatory orders of disqualified crook Stephen Lowney 06/17/2024 - by abusing retaliatory Vexatious Litigant order (which Stephen Lowney ordered 03/11/2024 in retaliation to my statements of his disqualification 02/20/2024 and 03/11/2024, while being in disqualification process and having no judicial power to rule on this matter).

By denying my notice of appeal Beth McGowen ultimately enforced and made non-appealable retaliatory orders of (1) my arrest, (2) permanent restraining order against my kidnapped and beaten on his birthday son, and (3) denial of my request to nullify all orders of three disqualified crooks Stephen Lowney (disqualified in 2024), Andrea Flint (disqualified in 2023), and James Towery (disqualified in 2022).

Orders 06/17/2024 were absolutely and undeniably retaliatory - and Beth McGowen was aware about severe retaliation of Stephen Lowney planned on 06/17/2024.

Lowney threatened to order my arrest back on 02/07/2024, forcing me by threats and coercion to abandon my son and give up passport and all documents of my son - therefore facilitating international child abduction of my son outside of the United States to Ukraine in times of war, intentionally endangering life of my son by intentionally harmful custody orders obtained by fraud on court.

I respectfully requested to reschedule hearing 06/17/2024 due to impermissible conflict of interest of Lowney against me, for three months, to allow enough time for Beth McGowen to officially disqualify and remove Lowney from court, as was requested in Statements of Disqualification 02/20/2024, 03/11/2024, 03/12/2024.

I not only requested to reschedule hearing 06/17/2024 by filing forms 306/309, but also send FOUR emails to clerk's office and to presiding judge Beth McGowen, asking for emergency help to reschedule hearings to prevent irreparable harm from severely retaliating disqualified crook Stephen Lowney.

But Beth McGowen directly and clearly stated in the letter 04/08/2024 that she refuses to officially disqualify bribed crook Stephen Lowney, and allows Lowney to severely retaliate to me for his disqualification.

It is also well known fact that Beth McGowen concealed disqualifications of all three disqualified crooks on this case: Stephen Lowney, Andrea Flint, and James Towery (confirmed by PAJAR Team).

The very fact that Presiding Judge never officially granted disqualification of judge already THREE

TIMES for THREE DISQUALIFIED JUDGES - but instead allowed and endorsed severe retaliation to me for disqualifying those bribed crooks with solid evidence of fraud committed by them, confirms that Beth McGowen has severe criminal intentions.

Denial of disqualifications, and concealing disqualifications are direct and undeniable harmful malpractice and abuse of judicial power - which over years turned Santa Clara County Superior Court into nest of uncontrollable organized crime, because real criminals, who are committing the most severe crimes under color of law, found their "home" in this fucking nit nest of Santa Clara County Court - knowing that they will never be prosecuted, and that presiding judge will protect them from disqualification - shamelessly supporting and endorsing organized crime.

Those criminals in Santa Clara County Court are committing various types of crimes, including:

- intentionally harmful custody orders, obtained by fraud,
- forcing children by intentionally harmful "court orders" to suffer parental child abduction and enforced parental alienation,
- forcing children suffer from enforced parental alienation through "court ordered" intentionally harmful paid professionally supervised visitations (stealing money from state budget by overbloating this program),
- ordering unnecessary and intentionally harmful services like emergency screening, minors counsel, etc,
- denying in blocking resolution of real issues on custody cases - including child abduction prevention, resolving custody disputes and ordering healthy co-parenting, finalization of divorce cases,
- stealing money from litigants through "court ordered" financial fraud orders (in case with Nancy Roberts based on falsified bank statements)
- denying all admissible evidence (including audio and video recording, statement of decision, media coverage, court reporter),
- making intentionally harmful custody orders by "transferring custody" from primary parent to abusive and violent parent,
- using threats and coercion to force primary parent to suffer and give up passport and all documents of the child,
- severely abusing judicial tools like Vexatious Litigant prefilling order, and Contempt - by deliberately blocking all filings and requests of opponent, and by ordering arrests against opponent (exactly what asshole Lowney did on 03/11/2024 and 06/17/2024).

Outburst of organized crime under supervision and endorsement of Beth McGowen turned Santa Clara County Court into place where justice is impossible, and law is non-existent.

All of my requests to reconsider orders obtained by fraud on court, were denied and blocked: 06/29/2023, 11/13/2023, 02/01/2024, 02/07/2024, 03/11/2024, 06/17/2024, etc.

Presiding Judge was aware about impermissible conflict of interest between Stephen Lowney (judge assigned to case 22FL003144), and of my requests to transfer case 22FL003144 to another department, and another court -

But instead of being garant of integrity of the court process, Presiding Judge refused to officially disqualify bribed crook Stephen Lowney, denied requests to reschedule hearings and transfer case, denied Change of Venue.

Beth McGowen turned case 22FL003144 from custody case and international child abduction prevention case, into great fight against organized crime in Superior Court - crime, supported and endorsed by Presiding Judge.

Corrupt crooks like Lowney, Flint and Towery (and I'm sure lots of other corrupt crooks in this court), feel protected and safe to commit any types of crimes, and be sure that they will be never prosecuted.

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,

I RESPECTFULLY ASK YOU TO:

- 1) OFFICIALLY DISQUALIFY THREE DISQUALIFIED CROOKS STEPHEN LOWNEY, ANDREA FLINT, JAMES TOWERY;
- 2) NULLIFY ALL ORDERS OF THREE DISQUALIFIED CROOKS RETROACTIVELY BACK TO 09/13/2023;
- 3) VACATE RETALIATORY VEXATIOUS LITIGANT ORDER, ORDERED BY DISQUALIFIED CROOK LOWNEY WHILE HE HAD NO JUDICIAL POWER DUE TO HIS ONGOING DISQUALIFICATION SINCE 02/20/2024;
- 4) TRANSFER CASE 22FL003144 TO SAN MATEO COUNTY COURT

There are few more asks in attached "Letter to Commission on Judicial Performance" PDF.

I kindly ask you to help get this case away from nest of organized crime Santa Clara County Court, and nullify all orders so we can start afresh with impartial judge.

Appreciate your help and prompt attention to this urgent matter.
Thank you

Constantine Mars,
(408) 518 0088
constantine.mars@gmail.com

File Upload

DENIED APPEAL - BY VEX LIT.pdf

2024-06-17 [Lowney] Massive fraud and bench warrant - Minute Order.pdf

Letter to Commission On Judicial Performance 2024-08-07 (APPEAL DENIED).pdf

Letter from Presiding Judge.pdf

2024-07-19 PAJAR Response regarding status of Disqualification of Lowney and Flint.pdf

2024-03-20 PAJAR Response regarding status of Disqualification against Lowney.pdf